Superior Court of the State of California, County of Orange

TENTATIVE RULINGS FOR DEPARTMENT C16

HON. JUDGE CARMEN R. LUEGE

Date: June 12th, 2026
Posted: June 11th, 4:00 PM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4:30 p.m. on Thursday. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5216. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Remote Appearances: Department C16 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely*: (1) all counsel and self-represented parties appearing for such hearings **must,** prior to 10:00 a.m. on Friday, check-in online via the Court's civil video appearance website at Civil Appearance Procedure and Information | Superior Court of California | County of Orange (occourts.org); (2) participants will then be prompted to join the courtroom's Zoom hearing session; and (3) the calendar will be displayed and participants will then be instructed to rename their Zoom name to include their hearing's calendar number. Check-in instructions and an instructional video are available on the court's website. Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." (https://www.occourts.org/system/files/hr/div3.pdf.)

#	Case Name	Tentative
49	**Ho vs. Chiweenie Ventures, LLC** **24-01381102**	**Motion for Leave to File Cross-Complaint** Defendant J.L. Ray Company, Inc.'s ("J.L. Ray") unopposed motion for leave to file a Cross-Complaint is GRANTED. A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). (Code Civ. Proc. § 428.50, subd. (c).) If the proposed cross-complaint is permissive, leave of court may be granted "in the interests of justice" at any time during the course of the action. (*Id*.) There is a liberal policy regarding the filing of cross-complaints. Code of Civil Procedure section 428.10 governs permissive cross-complaints. It provides in relevant part: "A party against whom a cause of action has been asserted ... may file a cross-complaint setting forth [¶] ... [¶] (b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him." (Code Civ. Proc., § 428.10, subd. (b).) Defendant J.L. Ray's proposed cross-complaint asserts causes of action for implied equitable indemnity, comparative contribution, declaratory relief, breach of written contract, negligence, breach of oral contract, implied contractual indemnity, and express indemnity. (Landau Decl. ¶ 13, Exh. G [Proposed Cross-Complaint].) These claims arise out of the transaction, occurrence, or series of transactions or occurrences as those alleged in Plaintiff's Complaint (ROA 2) and are permissive. (*Banerian v. O'Malley* (1974) 42 Cal.App.3d 604, 612 ["Except as between plaintiffs and defendants, there is no compulsory cross-complaint in California procedure."].) Defendant J.L. Ray has not unreasonably delayed in seeking leave to file its proposed cross-complaint and no prejudice to any party has been identified. Defendant J.L. Ray shall give notice and file and serve the Cross-Complaint attached as Exhibit A to the Declaration of Lauren A. Landau by June 26th, 2026.
50	**Wilson vs. Toyo Suisan Kaisha, Ltd.** **26-01546357**	**Motion to Appear Pro Hac Vice** The applications of attorney Joshua R. Harris for leave to appear as counsel pro hac vice for Plaintiff Shakeceyiea Smith individually and as Guardian ad litem on behalf of Z.B., a minor is CONTINUED TO 7/10/2026 at 8:30 AM in this Department to give Mr. Harris time to comply. Moving attorney has failed to comply with Rules of Court, Rule 9.40, subd. (c)(1) and (e). The application is not supported by any proof of service evidencing the application and notice of hearing was mailed on the State Bar, required per Rules of Court, Rule 9.40(c)(1). Furthermore, there is no proof of payment to State Bar as required pursuant to Rules of Court, Rule 9.40(e). Moving attorney to give notice to all parties who have appeared in this action.

53	**Phan vs. Bleu Restaurant and Dancing** **24-01448536**	**Motion to Quash Service of Summons** The Motion to Quash Service of Summons brought by Specially Appearing Defendant Kenney Nguyen is GRANTED, pursuant to Code of Civil Procedure section 418.10, subd. (a)(1).) The service of the summons and complaint which was purportedly completed on December 21, 2025, as reflected in the Proof of Service filed on January 8, 2026 (ROA No. 62), is quashed. The Court notes that this order is limited to review of the above Proof of Service and does not address the newly filed Proof of Service, dated May 4, 2026 (ROA No. 75.) The Request for Judicial Notice made by Specially Appearing Defendant Kenney Nguyen (ROA No. 65) is GRANTED, pursuant to Evidence Code section 452, subdivision (d). "A defendant on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion…[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a)(1).) "In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant...." (*Floveyor Inernat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 793.) "A party cannot be properly joined unless served with the summons and complaint; notice does not substitute for proper service. Until statutory requirements are satisfied, the court lacks jurisdiction over a defendant." (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808.) Additionally, "[w]hen a defendant challenges that jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1439-1440.) A responding plaintiff is required to show "at least substantial compliance with the relevant statutory requisites for service…." (*Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1165.) Per the Proof of Service filed on January 8, 2026, Defendant Kenney Nguyen was personally served the summons and complaint on December 21, 2025, at 7112 Bluesails Drive in Huntington Beach, California. (ROA No. 62.) Notably, the Proof of Service was executed by a registered process server. (See ¶7(e)(3) of ROA No. 62.) "The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return." (Evid. Code, § 647.) "Evidence Code section 647 provides that a registered process server's declaration of service establishes a presumption affecting the burden of producing evidence of the facts stated in the declaration." (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.) "Because of the statutory presumption, defendant was thus required to produce evidence that he was not served." (*Ibid.*)

Here, after reciting the details of the Proof of Service listed above, Defendant Nguyen declares: "I was not at the property on that date and, further that I and my ex-wife had sold the property more than two (2) years prior to the alleged date of service at that location." (¶8(a) of Kenney Nguyen Declaration.) "Said conveyance of the property on or about September 28, 2023 is evidenced by a *certified copy* of the Grant Deed associated with that conveyance attached hereto as EXHIBIT B…" (¶8(a) of Kenney Nguyen Declaration.)

Attached as Exhibit B to the Declaration is a Grant Deed, which indicates the property 7112 Bluesails Drive, Huntington Beach, California was transferred from Kenney K. Nguyen and Trang T. Nguyen, as Husband and Wife, to ThoaiVy LLC, on September 26, 2023. (¶8(a) of Kenney Nguyen Declaration and Exhibit B thereto.)

Defendant additionally declares: "On the date of the purported personal service, I was not even located in the United States, as I had traveled to my home country of Vietnam and, arrived on December 12, 2025 and remained there until the date of January 5, 2025, when I departed the country of Vietnam, as evidenced by the markings in my United States Passport, a copy of which is attached hereto as EXHIBTI C…" (¶8(c) of Kenney Nguyen Declaration and Exhibit C thereto.) Included within Exhibit C is a photocopy of Defendant's passport which, indeed, bears stamps referencing the dates December 12, 2025, and January 5, 2026. (*Ibid.*)

The above is sufficient to dispute service.

In response, Plaintiff raises two limited arguments.

Initially, Plaintiff asserts the motion should be denied as untimely, as it was filed more than 30 days after the service purportedly completed on December 21, 2025; however, this argument is unpersuasive, given service was insufficient.

As noted by Defendant, Code of Civil Procedure section 418.10 permits a motion to quash "on or before the last day of his or her time to plead" (Code Civ. Proc., § 418.10, subd. (a)), and the "time to plead" is within 30 days "after summons is served on the defendant." (Code Civ. Proc., § 412.20, subd. (a)(3).) Defendant persuasively argues that this time limitation is not triggered where, as here, it is demonstrated that service was not completed.

Moreover, regardless, Code of Civil Procedure section 418.10 permits a motion "within any further time that the court may for good cause allows…" (Code Civ. Proc., § 418.10, subd. (a).) Here, given Defendant has established he was *not* personally served, contrary to the Proof of Service filed on January 8, 2026, "good cause" exists to permit this motion to proceed.

Thereafter, Plaintiff asserts the motion should be denied, as Defendant and his insurer had notice of the action, as early as January 12, 2026. Per Plaintiff's Counsel, Plaintiff spoke with Debora Paez on January 12, 2026, wherein she confirmed that her insured was served and had tendered the matter to Triton Claims Management for further handling. (¶3 of Dennis Declaration.)

Plaintiff, essentially, relies on the existence of *actual* notice to defeat this motion; however, "[n]otice of the litigation does not confer personal jurisdiction absent substantial compliance with the statutory requirements for service of summons." (*Mannesmann DeMag Ltd. v. Superior Court* (1985) 172 Cal.App.3d 1118, 1124.)

		As the undisputed evidence demonstrates Defendant was *not* personally served, there has been no substantial compliance with the service requirements, and the motion must be granted. Clerk to give notice.
54	**Watts vs. Doyle** **25-01520747**	**Motion to Set Aside/Vacate Default** The Motion to Set Aside brought by Defendant Reena Doyle is conditionally GRANTED, pursuant to Code of Civil Procedure section 473, subdivision (b). Defendant Reena Doyle is ordered to file and serve an Answer to the Complaint within 7 days-notice of this order and, additionally, to confirm her address and agreed upon method of service. Upon completion of the above, default will be set aside. Alternatively, in the event an Answer is not filed within the above stated time-period, the motion is denied. "The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, sub. (b).) "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or other proceeding was taken." (Code Civ. Proc., § 473, sub. (b).) Initially, the instant motion was timely filed, less than two-months after entry of default. (See ROA Nos. 13 and 14.) The entirety of this motion is one paragraph offered by Defendant, under penalty of perjury, wherein Defendant requests relief pursuant to Code of Civil Procedure section 473, subdivision (b), on the basis "Defendant has been ill and unable to respond." (See ROA No. 14 [capitalization altered from original.]) Although *sparse*, the above is sufficient to demonstrate excusable neglect, for purposes of Code of Civil Procedure section 473, subdivision (b). "Excusable neglect exists when 'a reasonably prudent person in similar circumstances might have made the same error." (*County of San Bernardino v. Mancini* (2022) 83 Cal.App.5th 1095, 1103.) As illness could prevent a reasonably prudent person from responding to litigation, relief is appropriate; however, Plaintiff correctly notes that Defendant failed to attach a proposed Answer to her motion, as required. (Code Civ. Proc., § 473, subd. (b).) To correct this deficiency, Plaintiff proposes conditioning relief on an Answer being filed within 7 days of the hearing. This proposal is reasonable and would result in statutory compliance, prior to default being set aside. While Plaintiff proposes only permitting 7 days for filing, this period is reasonable, given the record indicates Defendant has already prepared her Answer. (¶8-¶10 of Schueller Declaration.)

		In addition to the above, Plaintiff reasonably requests the Court seek clarification from Defendant, as to her address of service and/or whether she consents to electronic service. Counsel notes some recent difficulty serving Defendant via mail, as Counsel's most recent mail correspondence was returned to sender. (¶5 of Schueller Declaration.) Given the reasonableness of this request, the Court adopts it and orders Plaintiff to confirm her address of service and preferred method of service. In addition to the above, Plaintiff requests the Court condition relief on Defendant preserving all partnership books, records, and financial documents, and providing Plaintiff with access to those records and a current accounting of all partnership assets, liabilities, and transactions since January 2025, within 21 days. (Opposition: 2:12-16.) This request is DENIED. While Code of Civil Procedure section 473, subdivision (b) authorizes relief "upon any terms as may be just," this "has been held to limit the conditions thus imposed to those 'reasonably proportionate to the other party's prejudice or expense.'" (*Shapiro v. Clark* (2008) 164 Cal.App.4th 1128, 1147.) "Strictly speaking this would suggest that conditions may only redress *costs incurred as a result of the default.*" (*Id.* at pp. 1147-1148.) Here, Plaintiff's requested relief is akin to an ultimate disposition of this action. Similar to the requested condition herein, Plaintiff's Complaint seeks "[a] declaration that Plaintiff is entitled to inspect or copy the partnership's books and records…" (¶E of Prayer for Relief [ROA No. 2].) Similarly, the Complaint seeks an order compelling compliance with Corporations Code section 16403. (¶B of Prayer for Relief [ROA No. 2].) Corporations Code section 16403 states: "A partnership shall provide partners and their agents and attorneys access to its books and records." (Corp. Code, § 16403, subd. (b).) Based on the above, Plaintiff's requested relief would defeat the purpose of having set default aside. Contrary to permitting Defendant to appear and defend against this action, Plaintiff requests the Court nonetheless provide the relief sought in the Complaint. In support of her request, Plaintiff cites *Reeves v. Hutson* (1956) 144 Cal.App.2d 445, wherein the Court of Appeal acknowledged a trial court order, conditioning relief from default on the defendant making the books and records of its corporation available to plaintiff for inspection and restraining defendant from transferring assets. (*Id.* at 448-449.) Initially, in determining whether conditions are appropriate for relief from default, "[e]ach case must be determined upon its own peculiar facts and circumstances." (*Shapiro v. Clark* (2008) 164 Cal.App.4th 1128, 1148.) *Reeves* was an action for "services rendered and for money had and received." (*Reeves v. Hutson* (1956) 144 Cal.App.2d 445, 447-448.) Consequently, it is *not* clear the conditions imposed therein were case determinative, as they are in this instance.

Additionally, it is worth noting *Reeves* found the referenced order *was not directly appealed* and likely unappealable. (*Reeves v. Hutson* (1956) 144 Cal.App.2d 445, 449-453.) For example, the Court in *Reeves* explained: "Appellant first attacks the validity of the order setting aside the default made on April 28, 1950, on the ground that the supporting affidavits do not show the required inadvertence, mistake, surprise, or excusable neglect. This attack assumes that the validity of that order is reviewable on this appeal. This assumption appears to be contrary to the applicable law." (*Id.* at p. 450.) The Court of Appeals went on to explain that the order setting aside default was, in their opinion, appealable. (*Id.* at p. 451); however, no appeal was taken therefrom. (*Id.* at 449.)

The Court further noted that, even "[i]f the order of April 28, 1950, was interlocutory in nature, then the order of December 4, 1951, was an order after final judgment and appealable." (*Reeves v. Hutson* (1956) 144 Cal.App.2d 445, 451.) "Since it has long since become final, the issues determined by it are res judicata." (*Ibid.*)

While the Court of Appeals later stated that, "whether the orders of April 28, 1950, and December 4, 1951, were or were not appealable, they were proper orders" (*Id.* at p. 453), this appears to be a mere acknowledgment that, regardless, at the time of that opinion the orders were *final*.

Based on the above, the opinion in *Reeves* does not clearly support the relief requested herein.

Plaintiff additionally requests the Court order Defendant to "preserve all partnership books, records, and financial documents," however, such an order is unnecessary: "The duty to preserve relevant evidence is triggered when the party is objectively on notice that litigation is reasonably foreseeable, meaning litigation is probable and likely to arise from an incident or dispute and not a mere possibility." (*Victor Valley Union High School Dist. v. Superior Court* (2023) 91 Cal.App.5th 1121, 1133.)

Lastly, Plaintiff requests the Court condition relief on the payment of $11,625.00 in attorneys' fees.

As noted above, any conditions imposed for relief "may only redress *costs incurred as a result of the default.*" (*Shapiro v. Clark* (2008) 164 Cal.App.4th 1128, 1147-1148.) However, *much* of the labor identified by Plaintiff was either unnecessary or is relevant to the overall management of this case, apart from the entry of default. (¶11 of Schueller Declaration.)

For example, Plaintiff indicates that some portion of the requested time was incurred drafting the opposition to this motion; however, the motion itself was a single paragraph which Plaintiff did not substantively oppose. (Opposition: 5:10-11.) Plaintiff, independently, chose to expand the issues in this motion, by asserting four additional requests for substantive orders within her opposition.

Similarly, Plaintiff indicates time was expended, attempting to address service issues; however, this labor is an inevitable result of the action proceeding and not, strictly speaking, a result of default having been entered.

Finally, while Plaintiff indicates *some* amount of labor was expended entering default and preparing a default judgment, this amount is not specified and, consequently, a more limited award is not possible.

		Thus, this proposed condition is DENIED. Clerk to give notice.
55	**Bacher vs. Prasad** **22-01265088**	**Motion for Attorney Fees** The Motion for Attorney Fees brought by Plaintiff Michael Scott Bacher dba Designer Properties is CONTIUED to 9/11/2026, at 10:00 a.m. in Department C16. Plaintiff is ordered to submit billing records, along with a summary of the work performed, which removes all items of billing related solely to litigation against Defendants Agarwal Markarian Holdings, Inc. and Inderjit Ghusar ("Broker Defendants"). Additionally, Plaintiff is ordered to provide a Declaration, expressly addressing whether a response was received to the requests for mediation made in February, April and May of 2022. It is undisputed the parties executed a "Buyer Representation Agreement – Exclusive" ("BRAE"), which includes an attorney fee provision. (¶3 of Knierim Declaration and Exhibit 1 thereto, at §9.) "In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code, § 1717, subd. (a).) "The court, upon notice and motion by a party, shall determine who is the party prevailing on the contract for purposes of this section, whether or not the suit proceeds to final judgment." (Civ. Code, § 1717, subd. (b)(1).) "[T]he party prevailing on the contract shall be the party who recovered a greater relief in the action on the contract." (*Ibid.*) Here, as judgment was entered against Defendants, with respect to Plaintiff's claim for breach of the BRAE (ROA Nos. 224 and 455), Plaintiff is necessarily the prevailing party thereon. While it is true Plaintiff dismissed his claim for breach of the implied covenant of good faith (See ROA No. 357), this claim was duplicative of the contract cause of action. (See in *Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1396 and 1401; See also ¶30-¶35 of FAC [ROA No. 77].) Similarly, while Defendants pursued a Cross-Complaint against Plaintiff, which likewise included contract claims, this Cross-Complaint was ultimately dismissed. (ROA No. 215.) Consequently, Plaintiff is "the party who recovered a greater relief in the action on the contract." (Civ. Code, § 1717, subd. (b)(1).) In opposing this motion, Defendants dispute Plaintiff's compliance with a mediation provision encompassed within the agreement. The relevant contractual language states as follows: "If, for any dispute or claim to which this paragraph applies, any party (i) commences an action without first attempting to

resolve the matter through mediation, or (ii) before commencement of an action, refuses to mediate after a request has been made, then that party shall not be entitled to recover attorney's fees…." (¶3 of Knierim Declaration and Exhibit 1 thereto, at §11(A).)

To establish compliance, Plaintiff attaches a Demand for Mediation made on December 14, 2021. (¶6 of Knierim Declaration and Exhibit 4 thereto.) The evidence indicates Defense Counsel responded to this demand on December 16, 2021, stating: "In accordance with the contract they are willing to participate in mediation…I would suggest using Peter Smith whose resume is attached as a mediator." (¶7 of Knierim Declaration and Exhibit 5 thereto; See also ¶5 of Mehta Declaration and Exhibit A thereto.) On that same day, Plaintiff's Counsel stated: "My preference is to use a mediator with broker experience. Attached are CV's from Roger Moss and Frederic Trester to consider. Their rates are also less. Please review and we can talk tomorrow morning at 9:00 a.m., if you are available." (¶7 of Knierim Declaration and Exhibit 5 thereto.)

Plaintiff, additionally, offers an email dated February 1, 2022, wherein Plaintiff's Counsel states: "This is a follow up after your clients last communication dated 1-7-2022 and a request for a status update, move forward with the Buyer Representation Agreement or Mediation." (¶8 of Knierim Declaration and Exhibit 6 thereto.)

On February 4, 2022, Defendant's *former* Counsel emailed Defendant Ajeshni Doreen Singh, advising: "I should respond that I no longer represent you and that he should communicate with you directly. As you may note they are requesting mediation pursuant to the listing agreement and you should respond to their request otherwise you may not be entitled to attorney's fees if you are the prevailing party in subsequent litigation. Please advise." (¶9 of Knierim Declaration and Exhibit 7 thereto.)

Subsequent to the above, on April 5, 2022, and again on April 8, 2022, Plaintiff himself emailed Defendants Ajeshni Doreen Singh and Madhu Prasad, requesting a response to the above referenced February 1, 2022, email. (¶10 of Knierim Declaration and Exhibit 8 thereto.)

Finally, on May 2, 2022, a formal letter was sent to Defendants, which outlined the nature of the dispute and again requested mediation pursuant to ¶11 of the Buyer Representation Agreement. (¶11 of Knierim Declaration and Exhibit 10 thereto.) While the letter dated May 2, 2022, asserts Defendants did not respond to the earlier communications, dated February 1, 2022, April 5, 2022, and April 8, 2022, this fact is not confirmed within a declaration. (*Ibid.*)

Similarly, while the motion asserts a response was not received to the above (Motion: 8:17-19), Counsel does not confirm this statement within his declaration. (See Knierim Declaration, generally.)

In the event Plaintiff's Counsel submits a declaration which confirms Defendants did *not* respond to the mediation communications, between February and June of 2022, the Court is inclined to find compliance with the mediation requirement.

While it is true that Defendants agreed to participate in mediation, on December 16, 2021 (¶7 of Knierim Declaration and Exhibit 5 thereto; See also ¶5 of Mehta Declaration and Exhibit A thereto), a subsequent failure to respond to Plaintiff's mediation-related communications would indicate Defendants were unwilling to follow through with their earlier agreement. Thus, while Plaintiff did not schedule mediation, the same is reasonable in response to an apparent rejection of the request.

In opposing the motion, Defendants offer an email from Plaintiff's Counsel dated September 14, 2022, wherein Plaintiff again offered mediation; however, Defendants attach an email from former Defense Counsel Patricia Welling, wherein Ms. Welling states "despite Mr. Trester's request for mediation last month, you indicated that the client is now not interested in mediation." (¶7 of Mehta Declaration and Exhibit C thereto.)

Defendants suggest the above evidence shows that Plaintiff refused to mediate after a request for mediation was made; however, the relevant contractual provision prohibits recovery of attorneys' fees only where such a refusal occurs "before commencement of an action…." (¶3 of Knierim Declaration and Exhibit 1 thereto, at §11(A).) As the above emails were sent *after* an action was initiated, they are irrelevant for purposes of determining compliance with ¶11 of the BRAE.

Next, the Court finds that Plaintiff is not entitled to recover fees incurred solely as the result of litigation against Defendants Agarwal Markarian Holdings, Inc. and Inderjit Ghusar ("Broker Defendants"), as no contractual right to attorneys' fees has been shown, as against these parties.

Instead, the relevant agreement provides only for fees incurred in a proceeding "between Buyer and Broker regarding the obligation to pay compensation under this Agreement…." (¶3 of Knierim Declaration and Exhibit 1 thereto, at §9.) This language does not encompass litigation incurred against third-parties to the contract.

"Where a cause of action based on the contract providing for attorney's fees is joined with other causes of action beyond the contract, the prevailing party may recover attorney's fees under section 1717 only as they relate to the contract action." (*Amtower v. Photon Dynamics, Inc.* (2008) 158 Cal.App.4th 1582, 1603, citing *Reynolds Metals Co. v. Alperson* (1979) 25 Cal.3d 124, 129-130.)

"Attorney fees, however, 'need not be apportioned when incurred for representation on an issue common to both a cause of action in which fees are proper and one in which they are not allowed." (*Brown Bark III, L.P. v. Haver* (2013) 219 Cal.App.4th 809, 829.) "The governing standard is whether the 'issues are so interrelated that it would have been impossible to separate them into claims for which attorney fees are properly awarded and claims for which they are not…." (*Id.* at pp. 829-830.)

While Plaintiff asserts all fees are interrelated, a clear division is discernable in the record of this action.

Defendants Agarwal Markarian Holdings, Inc. and Inderjit Ghusar were not added to the Complaint until April 18, 2023 (ROA No. 77) and did not make an appearance in this action via an Answer, until June 7, 2023. (ROA No. 505.)

While this action was pending against both sets of Defendants, a review of the record indicates Plaintiff filed multiple discovery motions, directed solely at the Broker Defendants. (See ROA Nos. 104, 125, 126, 183 and 191.) Plaintiff offers no explanation as to why the Client Defendants should be held finically responsible for fees incurred by Plaintiff, when the Broker Defendants did not comply with their discovery obligations.

		Thereafter, on October 31, 2024, the Court adjudicated Plaintiff's first cause of action for breach of contract, in his favor, against the Client Defendants. (ROA No. 224.) While Plaintiff filed a second Motion for Summary Adjudication against the Client Defendants on January 29, 2025 (ROA No. 279), the same was denied, given the claim was duplicative. (See ROA No. 316.) Subsequently, Plaintiff dismissed the second cause of action. (ROA No. 357.) After the above, all litigation in this action has proceeded solely against the Broker Defendants, with the sole exception of a Motion for Entry of Judgment filed on August 1, 2025 (ROA No. 373) and the instant Motion for Attorneys' Fees (ROA No. 462). In contrast to the authorities cited by Plaintiff, a clear line of demarcation exists, between the litigation pursued against the Client Defendants (for whom a contractual attorney's fee provision exists) and litigation against the Broker Defendants (for whom fees are not recoverable.) "A litigant may not increase his recovery of attorney's fees by joining a cause of action in which attorney's fees are not recoverable to one in which an award is proper." (*Erickson v. R.E.M. Concepts, Inc.* (2005) 126 Cal.App.4th 1073, 1083-1084.) Given the above, Plaintiff is ordered to resubmit his billing, with all entries relating solely to litigation against the Broker Defendants *removed.* Counsel for Plaintiff is also ordered to provide a summary of the work performed, similar to the summary offered within ¶25 of the Knierim Declaration, limited to the work performed against the Client Defendants. Plaintiff is ordered to file and serve the above, no later than 16 court days prior to the continued hearing date. Defendants may provide a *limited* response to the above, no later than 9 court days prior to the continued hearing date. Defendants' response shall be limited to identifying any charges Defendants believe were incurred solely in connection with litigation against the Broker Defendants. No other objections can be raised. Plaintiff to give notice.
56	**Fiore vs. Wagon Wheel Canyon Community Association** **24-01397793**	**Motion for Attorney Fees** Defendant/Cross-Complainant/Cross-Defendant Wagan Wheel Canyon Community Association ("Association") motion for attorneys' fees is DENIED. If authorized by statute, attorney fees may be awarded to a prevailing party. (Code of Civ. Proc. §§ 1032, subd. (b), 1033.5, subds. (a)(10)(B) & (c)(5).) Code of Civil Procedure section 1032 is the general cost recovery statute for civil lawsuits. "Attorney fees are not normally recoverable costs." (*Riverside Mining Limited v. Quality Aggregates* (2024) 104 Cal.App.5th 269, 275.) However, recoverable costs may include attorneys' fees where authorized by contract, statute, or another law. (See Code Civ. Proc., § 1033.5, subd. (a)(10); see also *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606 [attorneys' fees are recoverable as costs "if, but only if" the party seeking such fees has "a legal basis, independent of the cost statutes and grounded in an agreement, statute, or other law, upon which to claim recovery of attorney fees"].) Civil Code section 5975, subdivision (c), contains a mandatory reciprocal fee shifting provision: "In an action to

enforce the governing documents, the prevailing party shall be awarded reasonable attorney's fees and costs."

Regardless of the title of the various causes of action or allegations, an award of attorney fees to the prevailing party is appropriate under section 5975, subdivision (c), when the gravamen of the entire complaint is to enforce the governing documents. (*Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 259-260.) Here, it is undisputed that Plaintiff's action was brought to enforce the Association's Master Declaration of Covenants, Conditions, Restrictions and Reservation of Easements for Wagon Wheel Canyon, a Planned Development (the "CC&Rs").

Plaintiff commenced this action on May 6, 2024 by filing a Complaint against the Association the Homeowner Defendants. (ROA 2, 15, 18.) On February 17, 2026, Plaintiff dismissed Homeowner Defendants Tina Alinaghian-Green and Terrence Alinaghian-Green (ROA 112) as well as the Association (ROA 113). On February 26, 2026, Plaintiff dismissed Homeowner Defendants Huang Jiehao and Liu Zhenming. (ROA 114.) Plaintiff also dismissed the entire action without prejudice. (ROA 115.)

A Mandatory Settlement Conference ("MSC") was held on April 30, 2026. (ROA 144.) Attorney Wankel, counsel for the Association, stated all active parties have settled the matter. (*Id*.) The basic terms of the settlement are: "Parties agree to dismiss their cross-complaints without prejudice. Terrence Alinaghian-Green and Tina Alinaghian-Green agree to pay Huang Jiehao and Liu Zhenming a total of $15,000.00. As long as Huang Jiehao and Liu Zhenming own the subject property, they will trim the trees in question every 3 months, ongoing. Parties agree to waive all attorney fees and costs, as to the Cross-complaints." (*Id*.)

The Association argues it is the prevailing party because Plaintiff voluntarily dismissed all claims against the Association without prejudice. There was no settlement reached between Plaintiff and the Association, no judgment was entered, and no injunction was issued. The Association did not pay any money to Plaintiff, did not admit any wrongdoing, and did not undertake any obligations. Plaintiff contends that he obtained substantial relief when the Association's enforcement action against the Homeowner Defendants resulted in the trees at issue to be cut within one foot from the ground. (ROA 145 at 6:25-26.) Plaintiff asserts that Homeowner Defendants Huang Jiehao and Liu Zhenming's agreement to quarterly trimming was substantial relief because there had been no previous interval trimming and trimming had not been enforced. (*Id*. at 8:6-8.) Additionally, a non-party neighbor removed some of the trees at issue. (*Id*. at 9:1-6.)

Citing *Heather Farms*, the Association contends that prevailing party determinations are evaluated by examining which party achieved its litigation objectives as between the parties and the claims at issue. *Heather Farms*, however, does not place this limitation on the Court's analysis, and California law indicates otherwise.

Because the Davis-Stirling Common Interest Development Act does not define prevailing party, courts take a pragmatic approach to determine which party prevailed by considering the extent to which each party realized its litigation objectives. (*Wohlgemuth v. Caterpillar Inc.* (2012) 207 Cal.App.4th 1252, 1264.) "[I]n determining litigation success, courts should respect substance rather than

		form, and to this extent should be guided by 'equitable considerations.' " (*Hsu v. Abbara* (1995) 9 Cal.4th 863, 877 [italics omitted].) In *Silver v. Boatwright Home Inspection, Inc.* (2002) 97 Cal.App.4th 443, the Court of Appeal reiterated the principle that trial courts have discretion to base attorney fee awards on a pragmatic evaluation of the extent to which each party realized its litigation objectives. (*Id*. at p. 451; see also *Santisas v. Goodin* (1998) 17 Cal.4th 599, 622.) In *Silver,* the plaintiffs bought a home pursuant to a purchase agreement containing a fee provision. (*Silver, supra,* 97 Cal.App.4th at pp. 445–447.) The plaintiffs sued the sellers, an inspection firm, and other parties for breach of contract, negligence, fraud, and breach of fiduciary duty, asserting that they had suffered approximately $70,000 in damages. (*Id.* at pp. 446–448, 118 Cal.Rptr.2d 475.) After the plaintiffs settled their claims against all the defendants except the inspection firm, they voluntarily dismissed the inspection firm. (*Id.* at pp. 447–448.) The inspection firm requested a contract-based fee award as the prevailing party, which the trial court denied. (*Id.* at p. 448.) The Court of Appeal affirmed, concluding that despite the judgment in the inspection firm's favor, it had not prevailed, as the plaintiffs' settlements secured most of the relief that they sought. (*Id.* at pp. 452–453.) Here, Plaintiff and the Association obtained their litigation objectives. In bringing this action, Plaintiff sought, *inter alia*, Defendants' compliance with the governing documents, an order: (1) mandating that Defendants cut or remove the offending trees; (2) enjoining the Homeowner Defendants from allowing the offending trees to grow past the fence height; and (3) requiring the Association to mandate compliance by the Homeowner Defendants. (ROA 2 [Complaint].) Plaintiff has obtained this relief. (ROA 145; see also ROA 144.) Plaintiff also received $10,000.00 from the Alinaghian-Green Homeowner Defendants. (ROA 145.) For its part, the Association settled with the Homeowner Defendants and was voluntarily dismissed by Plaintiff. (See ROA 113 and ROA 144.) Moreover, a conclusion that Plaintiff and the Association realized their litigation objectives encourages the public policy of settlement of cases. It is well-established that settlements are "highly favored as productive of peace and good will in the community, and reducing the expense and persistency of litigation." (*McClure v. McClure* (1893) 100 Cal. 339, 343.) An award of attorney fees under the circumstances could increase the likelihood of litigation solely to establish a prevailing party. Moving party to give notice.
58	**Joslin vs. Fidelity National Law Group** **24-01440293**	**Demurrer to Amended Complaint & Motion to Strike Portions of Complaint** Defendants, Commonwealth Land Title Insurance Company (erroneously named and served as Fidelity National Law Group) ("CLTIC") and Brian Edwards ("Edwards") (collectively, "Defendants")'s demurrer to Plaintiff Jeff A. Joslin's ("Plaintiff") First Amended Complaint ("FAC") is **OVERRULED.** Defendants' motion to strike is **GRANTED WITH LEAVE TO AMEND** as to the punitive damages allegations and request for punitive damages, and **DENIED** in all other respects. Defendants' request for judicial notice of the documents filed in *Third Laguna Hills Mutual v. Michael Cohen, et al.* (OC Case No. 30-2017-00957937-CU-CO-

NJC), is **GRANTED**, but as to the existence and legal effect of the orders, finding and judgment entered, and not to the truth of any factual matters asserted therein. (*Fremont Indemnity Co. v. Fremont Gen. Corp*. (2007) 148 Cal.App.4th 97, 113.)

1. Demurrer

<u>First Cause of Action for Breach of Fiduciary Duty:</u>

"[A] breach of fiduciary duty is a species of tort distinct from a cause of action for professional negligence." (*Slovensky v. Friedman* (2006) 142 Cal.App.4th 1518, 1534.) The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, its breach and damage caused by that breach. (*Meister v. Mensinger* (2014) 230 Cal.App.4th 381, 395.)

"The attorney-client relationship is a fiduciary relation of the very highest character imposing on the attorney a duty to communicate to the client whatever information the attorney has or may acquire in relation to the subject matter of the transaction. [Citations.]" (*Beery v. State Bar* (1987) 43 Cal.3d 802, 813.) "An attorney owes all clients . . . duties of undivided loyalty and diligence, among other fiduciary duties." (*White Mountains Reinsurance Co. of America v. Borton Petrini, LLP* (2013) 221 Cal.App.4th 890, 902.)

A client's unilateral right to control the outcome of the client's case includes the "right to settle or refuse to settle a claim." (*Matter of Guzman* (Rev.Dept. 2014) 5 Cal. State Bar Ct.Rptr. 308, 314; see CRPC 1.2(a); *Amjadi v. Brown* (2021) 68 Cal.App.5th 383, 388-389—attorney's settlement of case over client's objection was voidable by client, and clause in retainer agreement giving attorney "sole discretion" to evaluate and accept settlement offer was void.)

The FAC alleges the existence of an attorney-client relationship giving rise to fiduciary duties of loyalty, disclosure, communication, and avoidance of conflicts of interest. (FAC, ¶¶ 7-9.) The FAC further alleges that Defendants breached those duties by failing to disclose conflicts of interest, concealing material information and communications, attempting to force Plaintiff to accept a settlement contrary to his express instructions, and executing and concealing a purported settlement agreement without Plaintiff's knowledge or consent. (FAC, ¶¶ 10-16.) These allegations concern breaches of duties of loyalty, disclosure, and conflict-free representation, rather than merely the quality of Defendants' legal services, and are sufficient to support a claim for breach of fiduciary duty. Plaintiff further alleges that, as a result of Defendants' unauthorized settlement-related conduct and concealment of material information, he lost the ability to recover attorney's fees and litigation costs, incurred additional legal expenses, suffered reputational and business harm, and jeopardized a potential malicious prosecution claim. (FAC, ¶¶ 17(A)-(E), 18.)

Defendants argue that the FAC fails to adequately allege breach, causation, or damages because judicially noticeable records purportedly establish that the dismissal of the underlying complaint was unilateral and that counsel's signature was not required to effectuate the dismissal. However, Plaintiff's claim is not based solely on the dismissal itself. Rather, the FAC alleges that Defendants entered into and concealed an unauthorized settlement-related agreement without Plaintiff's knowledge, consent, or authorization, despite his express instructions not to settle the case. (FAC, ¶¶ 10, 15-17.)

Plaintiff further alleges resulting damages, including lost attorney's fees and costs, additional legal expenses, reputational and business harm, and impairment of a potential malicious prosecution claim. (FAC, ¶¶ 17(A)-(E), 18.) Whether Plaintiff can ultimately establish that such damages were proximately caused by Defendants' conduct presents a merits issue not properly resolved at the pleading stage. (*State Dept. of State Hospitals v. Superior Court* (2015) 61 Cal.4th 339, 353 [proximate cause is ordinarily a question of fact that cannot be decided as a matter of law based solely on the allegations of a complaint].)

The FAC adequately alleges a cause of action for breach of fiduciary duty. Thus, the demurrer to the first cause of action is OVERRULED.

<u>Second Cause of Action for Professional Negligence:</u>

To prevail on a professional negligence claim against an attorney, the former client must prove (1) the breach of the applicable duty of care; and (2) proximate causation between the conduct and the resulting injury. (See *Paul v. Patton* (2015) 235 Cal.App.4th 1088, 1095 and *Kemper v. County of San Diego* (2015) 242 Cal.App.4th 1075, 1079.) Plaintiff must show that but for the attorney's negligence, the harm would not have occurred; or the negligence was a concurrent independent cause of the harm. (*Viner v. Sweet* (2003) 30 Cal.4th 1232, 1240-1241.)

The FAC alleges the existence of an attorney-client relationship giving rise to a duty of care, breaches of that duty based on Defendants' alleged conflicts of interest, failure to disclose material information, attempted withdrawal shortly before trial, and unauthorized settlement-related conduct, as well as resulting damages. (FAC, ¶¶ 20-23.)

Defendants argue that the claim is deficient because it fails to allege facts showing a breach of the applicable standard of care, causation, or legally cognizable damages, and because judicially noticeable records purportedly establish that the dismissal of the underlying action was unilateral and not caused by Defendants' conduct. However, "[a]n attorney's duty, the breach of which amounts to negligence, is not limited to his failure to use the skill required of lawyers. Rather, it is a wider obligation to exercise due care to protect a client's best interests in all ethical ways and in all circumstances." (*Day v. Rosenthal* (1985) 170 Cal.App.3d 1125, 1147.) The FAC alleges that Defendants breached those duties by failing to disclose conflicts of interest, concealing material information and communications, attempting to force Plaintiff to accept a settlement contrary to his express instructions, and executing and concealing a purported settlement agreement without Plaintiff's knowledge or consent. (FAC, ¶¶ 10-16.) These allegations are sufficient at the pleading stage to allege a breach of the applicable standard of care. Further, whether Plaintiff can ultimately establish causation and damages is not appropriately resolved on demurrer.

Defendants also argue that the professional negligence claim is duplicative of the breach of fiduciary duty claim because both causes of action arise from the same underlying facts. However, the fact that two causes of action arise from the same conduct does not render them duplicative as a matter of law. An attorney's conduct may give rise to both fiduciary-duty and professional-negligence theories where the same acts constitute both a breach of fiduciary obligations and a breach of the applicable standard of care. (See, e.g., *T & R Foods, Inc. v. Rose* (1996) 47 Cal.App.4th Supp. 1, 7-8.) Moreover, when a pleader is uncertain as to what facts may ultimately be established, California law permits pleading in the alternative and even inconsistent theories of liability. (*Mendoza v. Rast Produce Co., Inc*. (2006) 140 Cal.App.4th 1395, 1402.)

The FAC alleges facts sufficient to state a cause of action for professional negligence. Further, the second cause of action is not uncertain, ambiguous, or unintelligible such that Defendants cannot reasonably respond. Accordingly, the demurrer to the second cause of action is OVERRULED.

2. Motion to Strike

Defendants move to strike portions of the FAC:

(1) Paragraph 17A, lines 16-23: "Plaintiff informed Defendants that Plaintiff had accumulated legal fees and costs during this lawsuit before Defendants agreed to take over the Prior Case, Plaintiff paid legal fees for legal services he received while Plaintiff was pro-per at the onset of the case. Plaintiff also had costs and expenses that he paid during the time he was pro-per and during the Prior Case. Since Defendants settled the Prior Case without Plaintiff's consent, knowledge, or approval, Plaintiff can no longer recover these legal expenses for among other reasons, Civil Code § 1717 has reciprocal attorney's fees that would have been recovered without Defendants unauthorized settlement;"
(2) Paragraph 17B, lines 24-26: "Plaintiff paid legal fees for work performed on this complaint to his attorney representing him in this cross-complaint. Because of Defendants hidden agreement and unauthorized settlement, Plaintiff can no longer recover these expenses;"
(3) Paragraph 17C, lines 1-5: "Defendant's actions of refusing to represent Plaintiff just days before trial required Plaintiff to pay substantial legal fees to get his cross-complaint attorney prepared for trial, covering the time period from November 8, 2023 through the filing of the hidden settlement agreement on November 16, 2023. Since Defendants hidden agreement and unauthorized settlement, Plaintiff can no longer recover these expenses;"
(4) Paragraph 17D, lines 6-10: "Plaintiff, who makes a living as a financial advisor, now has a record of settling a fraud action, which Plaintiff is now required to disclose to clients that ask about Plaintiff's litigation history. This has and will cost Plaintiff to sustain loss of business income, goodwill, business reputation, and tainted Plaintiff history with a public record of a settlement of a fraud action;"
(5) Paragraph 17E, lines 11-13: "Plaintiff's cause of action for Malicious Prosecution is now in jeopardy because of Defendant's hidden settlement agreement that was entered into without Plaintiff's knowledge or approval;"
(6) Paragraph 19 in its entirety: "The conduct of Defendants, and each of them, was willful, malicious, and a conscious disregard for Plaintiff's rights. Accordingly, Plaintiff is seeking the imposition of punitive damages to punish the conduct of Defendants, and each of them, and deter such conduct in the future;" and
(7) Item 2, line 8, in the prayer for relief, for punitive damages.

General Legal Authority:

The court may "[s]trike out any irrelevant, false, or improper matter inserted in any pleading." (Code Civ. Proc., § 436, subd. (a).)

		A motion to strike may lie where the facts alleged do not rise to the level of "malice, fraud or oppression" required to support a punitive damages award. (See *Turman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63—allegations of gender discrimination did not show defendant acted with requisite state of mind for punitive damages.) In ruling on a motion to strike, the allegations in the complaint are considered in context and presumed to be true: "[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Sup.Ct. (Pedus Services, Inc.)* (1998) 67 Cal.App.4th 1253, 1255.) <u>Damages in the Prior Action:</u> The FAC alleges that Defendants concealed conflicts of interest, failed to communicate material information, acted contrary to Plaintiff's instructions regarding settlement, and entered into a settlement-related agreement without Plaintiff's knowledge or consent. (FAC, ¶¶ 10-16.) The FAC further alleges that, as a result of Defendants' conduct, Plaintiff lost the ability to recover attorney's fees and costs, incurred additional legal expenses, suffered reputational and business harm, and jeopardized a potential malicious prosecution claim. (FAC, ¶ 17(A)-(E).) Defendants move to strike these allegations of damages arising from the Prior Action, arguing that they are legally unavailable, speculative, or not proximately caused by Defendants' conduct. However, as discussed above, these arguments go to causation and the ultimate recoverability of the claimed damages, rather than whether the allegations are improper on their face. At the pleading stage, the Court cannot determine as a matter of law that Plaintiff cannot prove damages arising from the alleged conduct. Defendants also argue that Plaintiff cannot recover attorney's fees allegedly incurred in this action under paragraph 17(B). However, paragraph 17(B) does not clearly allege that Plaintiff seeks attorney's fees incurred in prosecuting this action against Defendants. Rather, it may reasonably be construed as alleging that Plaintiff incurred attorney's fees in connection with his cross-complaint in the underlying litigation and lost the ability to recover those fees as a result of Defendants' alleged conduct. (See FAC ¶ 17(B).) Accordingly, the motion to strike FAC paragraphs 17(A), 17(B), 17(C), 17(D), and 17(E) is DENIED. <u>Punitive Damages:</u> The FAC alleges that Defendants concealed conflicts of interest, failed to disclose material information, acted contrary to Plaintiff's instructions concerning settlement, and entered into a settlement-related agreement without Plaintiff's knowledge or consent. (FAC, ¶¶ 10-16.) However, the FAC does not allege specific facts showing conduct that constitutes malice, oppression, or fraud within the meaning of Civil Code section 3294. Instead, it alleges only in conclusory terms that Defendants acted willfully, maliciously, and in conscious disregard of Plaintiff's rights. (FAC, ¶ 19.) Accordingly, the motion to strike paragraph 19 and Item 2 of the prayer for relief is GRANTED with leave to amend.

		Should Plaintiff wish to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling. Defendants to give notice.
59	**Akers vs. Anchor West Properties** **24-01387567**	**Motion for Summary Judgment and/or Adjudication** NO TENTATIVE RULING – Parties to appear on Zoom or in-person.